



Bill Number: S.B. 1479

Carroll Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. States that the notarial thumbprinting requirements do not apply to a notarial act performed for a remotely located individual if:
 - a) the audiovisual recording of the notarization shows the forms of identification provided for notarization;
 - b) the notary retains the audiovisual recording for at least seven years; and
 - c) the notary otherwise complies with the statutory requirements for notarial acts performed for a remotely located individual.
2. Makes technical and conforming changes.

CARROLL FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1479
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 11, chapter 3, article 3, Arizona Revised
3 Statutes, is amended by adding section 11-472, to read:

4 11-472. Recording; photo identification; exemptions

5 A. FOR ANY DOCUMENT THAT IS RECORDED IN PERSON AT THE RECORDER'S
6 OFFICE OR AT A RECORDING KIOSK, A PERSON SHALL PROVIDE THE RECORDER WITH A
7 VALID FORM OF PHOTO IDENTIFICATION UNLESS THE DOCUMENT TO BE RECORDED IS
8 SUBMITTED BY ANY OF THE FOLLOWING:

9 1. AN ESCROW OFFICER OR ESCROW OFFICE.

10 2. A TITLE INSURANCE AGENT OR TITLE INSURER AS DEFINED IN SECTION
11 20-1562.

12 3. A STATE-CHARTERED OR FEDERALLY CHARTERED BANK OR CREDIT UNION.

13 4. AN ACTIVE MEMBER OF THE STATE BAR OF ARIZONA.

14 5. A GOVERNMENTAL ENTITY, INCLUDING AN AGENCY, BRANCH OR
15 INSTRUMENTALITY OF THE FEDERAL GOVERNMENT.

16 B. THE RECORDER MAY NOT RETAIN A COPY OF THE PERSON'S
17 IDENTIFICATION, BUT SHALL NOTE IN THE RECORDING SYSTEM OR RECEIPT FOR THE
18 RECORDING, OR BOTH, THE FOLLOWING:

19 1. THE TYPE OF IDENTIFICATION.

20 2. THE NAME ON THE IDENTIFICATION.

21 3. THE IDENTIFICATION NUMBER.

22 C. THE INFORMATION NOTED PURSUANT TO SUBSECTION B OF THIS SECTION
23 IS NOT A PUBLIC RECORD, IS EXEMPT FROM TITLE 39, CHAPTER 1 AND IS NOT
24 SUBJECT TO DISCLOSURE.

25 Sec. 2. Title 11, chapter 3, article 7, Arizona Revised Statutes,
26 is amended by adding section 11-544, to read:

27 11-544. Notice to owner; changed information

28 ON OR BEFORE JANUARY 1, 2027, THE ASSESSOR SHALL PROVIDE A SYSTEM
29 FOR NOTIFYING AN OWNER OF A PARCEL OF REAL PROPERTY WHEN THE ASSESSOR

1 RECEIVES NOTICE OF A CHANGE IN THE OWNERSHIP OF OR THE MAILING ADDRESS FOR
2 THE OWNER OF THE PARCEL OF REAL PROPERTY. THE SYSTEM SHALL ALLOW AN OWNER
3 TO CHOOSE TO PARTICIPATE AND IS VOLUNTARY FOR THE OWNER, AND THE NOTICE
4 SHALL BE PROVIDED PROMPTLY BY EMAIL, TEXT MESSAGE OR OTHER SIMILAR MEANS.

5 Sec. 3. Section 11-1133, Arizona Revised Statutes, is amended to
6 read:

7 11-1133. Affidavit of legal value

8 A. Each deed evidencing a transfer of title and any contract
9 relating to the sale of real property shall have appended at the time of
10 recording an affidavit of the seller and the buyer to the transaction, or
11 the agent of either the seller or buyer, or both, in a form approved by
12 the department of revenue, who shall declare and jointly certify the
13 following information:

14 1. The name, ~~and~~ MAILING address AND TELEPHONE NUMBER of the buyer
15 and seller. THE BUYER AND SELLER MAY PROVIDE ADDITIONAL CONTACT
16 INFORMATION, INCLUDING EMAIL ADDRESSES.

17 2. The name and address where a tax statement may be sent.

18 3. The complete legal description of the property.

19 4. The situs address, if any, of the property.

20 5. The date of sale.

21 6. The total consideration paid for the property, the amount of
22 cash down payment and whether ~~or not~~ the type of financing included cash,
23 a new ~~third-party~~ THIRD-PARTY loan, a new loan from the seller, an
24 assumption of an existing loan or an exchange or trade of property.

25 7. Whether ~~or not~~ the estimated market value of personal property
26 received by the buyer equals five ~~per-cent~~ PERCENT or more of the total
27 consideration.

28 8. The assessor's parcel number or numbers assigned to the real
29 property by the county assessor or, in the case of a new parcel or parcels
30 not yet assigned a parcel number, the parcel number or numbers of the
31 previous parcel or parcels from which the new parcel or parcels are
32 created.

33 9. The conditions of the transaction, including the relationship,
34 if any, of the parties.

35 10. The use and description of the property and, in the case of a
36 residential dwelling, whether the property is to be owner-occupied or
37 rented.

38 11. The name and address of the person to contact regarding
39 information contained on the affidavit.

40 B. If a beneficiary of a foreclosed trustee's deed receives payment
41 based on private mortgage insurance covering the sale that is in addition
42 to the proceeds of the sale, the beneficiary shall submit, in a form
43 approved by the department of revenue, to the county recorder in the
44 county where the property is located within four months after the date of
45 the trustee's sale a beneficiary's declaration of additional funds
46 received that contains the following:

1 1. The county assessor's parcel number or numbers assigned as of
2 the date of the trustee's sale.
3 2. The name and address of the beneficiary submitting the
4 declaration.
5 3. The date of the trustee's sale.
6 4. The highest bid amount received by the trustee at the trustee's
7 sale.
8 5. The recording number of the trustee's deed on sale.
9 6. The amount of any additional compensation received by the
10 beneficiary within three months after the date of the trustee's sale.
11 C. The county recorder shall refuse to record any deed and any
12 contract relating to the sale of real property if a complete affidavit of
13 legal value is not appended unless the instrument bears a notation
14 indicating an exemption pursuant to section 11-1134.
15 D. An affidavit is complete for **THE** purposes of this section if all
16 of the required information is stated on the affidavit form or is
17 indicated on the form as "not applicable".
18 Sec. 4. Repeal
19 Section 12-524, Arizona Revised Statutes, is repealed.
20 Sec. 5. Section 33-420, Arizona Revised Statutes, is amended to
21 read:
22 33-420. ~~False documents; liability; special action; damages;~~
23 ~~violation; classification~~
24 A. A person purporting to claim an interest in, or a lien or
25 encumbrance against, real property, who causes a document asserting such
26 claim to be recorded in the office of the county recorder, knowing or
27 having reason to know that the document is forged, ~~OR~~ groundless,
28 contains a material misstatement or false claim or is otherwise invalid is
29 liable to the owner or beneficial title holder of the real property for
30 the sum of ~~not less than five thousand dollars,~~ **AT LEAST \$5,000** or for
31 treble the actual damages caused by the recording, whichever is greater,
32 and reasonable attorney fees and costs of the action.
33 B. The owner or beneficial title holder of the real property may
34 bring an action pursuant to this section in the superior court in the
35 county in which the real property is located for such relief as is
36 required to immediately clear title to the real property as provided for
37 in the rules of procedure for special actions. This special action may be
38 brought based on the ground that the lien is forged, ~~OR~~ groundless,
39 contains a material misstatement or false claim or is otherwise invalid.
40 The owner or beneficial title holder may bring a separate special action
41 to clear title to the real property or join such action with an action for
42 damages as described in this section. In either case, the owner or
43 beneficial title holder may recover reasonable attorney fees and costs of
44 the action if ~~he~~ **THE OWNER OR BENEFICIAL TITLE HOLDER** prevails.
45 C. A person who is named in a document ~~which~~ **THAT** purports to
46 create an interest in, or a lien or encumbrance against, real property and
47 who knows that the document is forged, ~~OR~~ groundless, contains a material

1 misstatement or false claim or is otherwise invalid ~~shall be~~ IS liable to
2 the owner or BENEFICIAL title holder for the sum of ~~not less than one~~
3 ~~thousand dollars;~~ AT LEAST \$1,000 or for treble actual damages, whichever
4 is greater, and reasonable attorney fees and costs as provided in this
5 section, if ~~he~~ THE PERSON wilfully refuses to release or correct ~~such~~ THE
6 document of record within twenty days ~~from~~ AFTER the date of a written
7 request from the owner or beneficial title holder of the real property.

8 D. A document purporting to create an interest in, or a lien or
9 encumbrance against, real property not authorized by statute, judgment or
10 other specific legal authority is presumed to be groundless and invalid.

11 E. A person purporting to claim an interest in, or a lien or
12 encumbrance against, real property, who causes a document asserting such
13 claim to be recorded in the office of the county recorder, knowing or
14 having reason to know that the document is forged, ~~OR~~ groundless,
15 contains a material misstatement or false claim or is otherwise invalid,
16 is guilty of a class ~~1 misdemeanor~~ 4 FELONY.

17 Sec. 6. Section 41-254, Arizona Revised Statutes, is amended to
18 read:

19 41-254. Personal appearance required; thumbprint; exceptions

20 A. If a notarial act relates to a statement made in or a signature
21 executed on a record, the individual making the statement or executing the
22 signature shall appear personally before the notarial officer.

23 B. If a notarial act involves a translator under section 41-253,
24 subsection F, the translator shall appear personally before the notary
25 public.

26 C. IF THE DOCUMENT TO BE NOTARIZED IS A DEED, QUITCLAIM DEED, DEED
27 OF TRUST OR OTHER DOCUMENT THAT AFFECTS REAL PROPERTY OR A POWER OF
28 ATTORNEY DOCUMENT, THE NOTARY PUBLIC SHALL REQUIRE THE PARTY SIGNING THE
29 DOCUMENT TO PLACE THE PARTY'S RIGHT THUMBPRINT IN THE NOTARY'S JOURNAL.
30 IF THE RIGHT THUMBPRINT IS NOT AVAILABLE, THE NOTARY PUBLIC SHALL HAVE THE
31 PARTY USE THE PARTY'S LEFT THUMB, OR ANY AVAILABLE FINGER, AND SHALL SO
32 INDICATE IN THE JOURNAL. IF THE PARTY SIGNING THE DOCUMENT IS PHYSICALLY
33 UNABLE TO PROVIDE A THUMBPRINT OR FINGERPRINT, THE NOTARY PUBLIC SHALL SO
34 INDICATE IN THE JOURNAL AND SHALL ALSO PROVIDE AN EXPLANATION OF THAT
35 PHYSICAL CONDITION. ~~[THIS]~~

36 [D.] SUBSECTION [C OF THIS SECTION] DOES NOT APPLY TO [ANY OF THE
37 FOLLOWING:

38 1.] A TRUSTEE'S DEED THAT RESULTS FROM A JUDICIAL OR NONJUDICIAL
39 FORECLOSURE[.] [OR TO]

40 [2.] A DEED OF RELEASE AND RECONVEYANCE.

41 [3. A NOTARIAL ACT FOR A DOCUMENT PRESCRIBED BY SUBSECTION C OF
42 THIS SECTION FOR A REMOTELY LOCATED INDIVIDUAL IF THE AUDIOVISUAL
43 RECORDING OF THE NOTARIZATION SHOWS THE FORMS OF IDENTIFICATION PROVIDED
44 FOR THE NOTARIZATION, THE NOTARY RETAINS THE AUDIOVISUAL RECORDING FOR AT
45 LEAST SEVEN YEARS AND THE NOTARY OTHERWISE COMPLIES WITH SECTION 41-263.]

1 <<Sec. 7. Section 41-263, Arizona Revised Statutes, is amended to
2 read:

3 41-263. Notarial act performed for remotely located
4 individual; definitions

5 A. A remotely located individual may comply with section 41-254 by
6 using communication technology to appear before a notary public.

7 B. A notary public located in this state may perform a notarial act
8 using communication technology for a remotely located individual if:

9 1. The notary public has any of the following:

10 (a) Personal knowledge under section 41-255, subsection A of the
11 remotely located individual's identity.

12 (b) Satisfactory evidence of the identity of the [REMOTELY LOCATED]
13 individual by oath or affirmation from a credible witness appearing before
14 and identified by the notary public under section 41-255, subsection B or
15 this section.

16 (c) Satisfactory evidence of the identity of the remotely located
17 individual by using at least two different types of identity proofing.

18 2. The notary public is able reasonably to confirm that a record
19 before the notary public is the same record in which the remotely located
20 individual made a statement or on which the individual executed a
21 signature.

22 3. The notary public, or a person acting on behalf of the notary
23 public, creates an audiovisual recording of the performance of the
24 notarial act.

25 4. For a remotely located individual located outside the United
26 States, both of the following apply:

27 (a) The record either:

28 (i) Is to be filed with or relates to a matter before a public
29 official or court, governmental entity or other entity subject to the
30 jurisdiction of the United States.

31 (ii) Involves property located in the territorial jurisdiction of
32 the United States or involves a transaction substantially connected with
33 the United States.

34 (b) The notary public has no actual knowledge that the act of
35 making the statement or signing the record is prohibited by the foreign
36 state in which the remotely located individual is located.

37 C. If a notarial act is performed under this section, the
38 certificate of notarial act required by section 41-264 and the short form
39 certificate provided in section 41-265 must indicate that the notarial act
40 was performed using communication technology.

41 D. A short form certificate provided in section 41-265 for a
42 notarial act subject to this section is sufficient if either of the
43 following applies:

44 1. The form of certificate complies with rules adopted under
45 subsection G, paragraph 1 of this section.

1 2. The certificate is in the form provided in section 41-265 and
2 contains a statement substantially as follows: "This notarial act involved
3 the use of communication technology."

4 E. A notary public, a guardian, conservator or agent of a notary
5 public or a personal representative of a deceased notary public shall
6 retain the audiovisual recording created under subsection B, paragraph 3
7 of this section or cause the recording to be retained by a repository
8 designated by or on behalf of the person required to retain the recording.
9 Unless a different period is required by rule adopted under subsection G,
10 paragraph 4 of this section [AND EXCEPT AS PRESCRIBED BY SECTION 41-254],
11 the recording must be retained for a period of at least five years after
12 the recording is made.

13 F. Before a notary public performs the notary public's initial
14 notarial act under this section, the notary public must notify the
15 secretary of state that the notary public will be performing notarial acts
16 with respect to remotely located individuals and identify the technologies
17 the notary public intends to use. If the secretary of state has
18 established standards under subsection G of this section and section
19 41-275 for approval of communication technology or identity proofing, the
20 communication technology and identity proofing must conform to the
21 standards.

22 G. In addition to adopting rules under section 41-275, ~~[on or~~
23 ~~before July 1, 2022,]~~ the secretary of state shall adopt rules under this
24 section regarding performance of notarial acts for remotely located
25 individuals. The rules may:

26 1. Prescribe the means of performing a notarial act involving a
27 remotely located individual using communication technology.

28 2. Establish standards for communication technology and identity
29 proofing.

30 3. Establish requirements or procedures to approve providers of
31 communication technology and the process of identity proofing.

32 4. Establish standards and a period for the retention of an
33 audiovisual recording created under subsection B, paragraph 3 of this
34 section.

35 H. Before adopting, amending or repealing a rule governing
36 performance of a notarial act with respect to a remotely located
37 individual, the secretary of state must consider:

38 1. The most recent standards regarding the performance of a
39 notarial act with respect to a remotely located individual adopted by
40 national standard-setting organizations and the recommendations of the
41 national association of secretaries of state.

42 2. Standards, practices and customs of other jurisdictions that
43 have laws substantially similar to this section.

44 3. The views of governmental officials and entities and other
45 interested persons.

46 I. For the purposes of this section:

1 1. "Communication technology" means an electronic device or process
2 that:

3 (a) Allows a notary public and a remotely located individual to
4 communicate with each other simultaneously by sight and sound.

5 (b) When necessary and consistent with other applicable law,
6 facilitates communication with a remotely located individual who has a
7 vision, hearing or speech impairment.

8 2. "Foreign state" means a jurisdiction other than the United
9 States, a state or a federally recognized Indian tribe.

10 3. "Identity proofing" means a process or service by which a third
11 person provides a notary public with a means to verify the identity of a
12 remotely located individual by a review of personal information from
13 public or private data sources.

14 4. "Outside the United States" means a location outside the
15 geographic boundaries of the United States, Puerto Rico, the United States
16 Virgin Islands and any territory, insular possession or other location
17 subject to the jurisdiction of the United States.

18 5. "Remotely located individual" means an individual who is not in
19 the physical presence of the notary public who performs a notarial act
20 under subsection B of this section.>>

21 Enroll and engross to conform

22 Amend title to conform

FRANK CARROLL

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